

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
JOSEPH RODRIGUEZ,

Plaintiff,

- against -

CITY OF NEW YORK, SERGEANT SOTO,  
POLICE OFFICER PEREZ, and LIEUTENANT  
JOHN DOE,

Defendants.  
-----X

INDEX #:

**SUMMONS**

Date Purchased:

SUMMONS

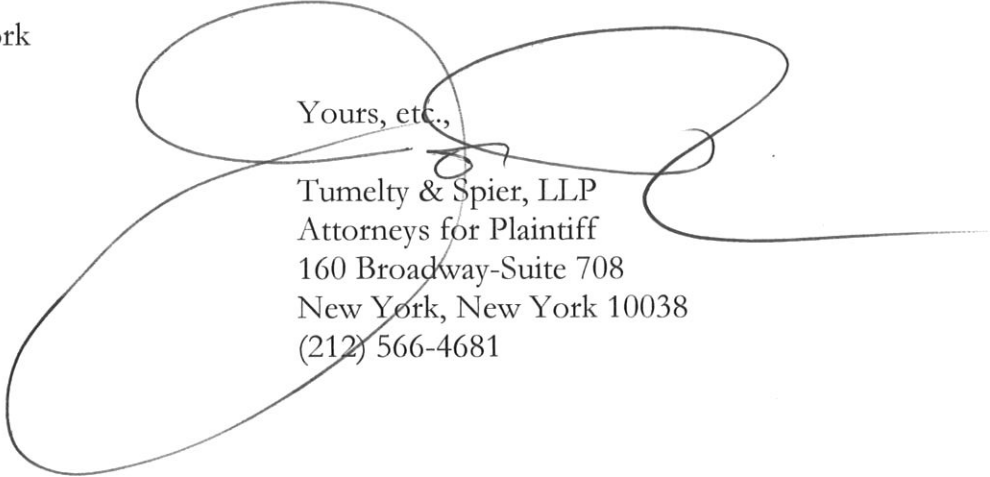
Plaintiff designates New York County as the place of trial. The basis of venue is the Defendants' residence and the location where the incident occurred. Plaintiff JOSEPH RODRIGUEZ resides at 2845 Bainbridge Avenue, Apt#1, Bronx, New York 10458.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer; or, if the Verified Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney within 20 days after the service of this Summons with Notice, exclusive of this day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York  
June 2, 2015

Yours, etc.,

  
Tumelty & Spier, LLP  
Attorneys for Plaintiff  
160 Broadway-Suite 708  
New York, New York 10038  
(212) 566-4681

**Defendants' addresses:**

CITY OF NEW YORK  
C/O Corporation Counsel  
100 Church Street  
New York, New York 10007

SERGEANT SOTO  
C/O 6<sup>th</sup> Precinct  
233 West 10<sup>th</sup> Street  
New York, New York 10014

POLICE OFFICER PEREZ  
C/O 6<sup>th</sup> Precinct  
233 West 10<sup>th</sup> Street  
New York, New York 10014

LIEUTENANT JOHN DOE  
C/O 6<sup>th</sup> Precinct  
233 West 10<sup>th</sup> Street  
New York, New York 10014

**Plaintiff's residence:**

JOSEPH RODRIGUEZ  
2845 Bainbridge Avenue, Apt#1  
Bronx, New York 10458

**NOTICE:** The nature of this action is for violation of constitutional rights, false arrest, unlawful imprisonment, assault, battery, malicious prosecution and other causes of action.

The relief sought is monetary damages in excess of the jurisdictional limits of all lower Courts.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

INDEX #:

-----X  
JOSEPH RODRIGUEZ,

Plaintiff,

**VERIFIED COMPLAINT**

- against -

CITY OF NEW YORK, SERGEANT SOTO,  
POLICE OFFICER PEREZ, and LIEUTENANT  
JOHN DOE,

Defendants.  
-----X

Plaintiff complaining of the Defendants by their attorneys, Tumelty & Spier, LLP,  
hereby allege, upon information and belief, as follows:

**PREAMBLE**

1. This is an action to redress the deprivation by the Defendants of the rights  
secured to the Plaintiff by the Constitution and Laws of the United States and the State of  
New York.

2. These claims are brought pursuant to Sections 1983 and 1988 of Title 42,  
United States Code, and other State and Federal Statutes.

3. A valid Notice of Claim for Plaintiff regarding the claims herein was filed with  
the City of New York on or about July 9, 2014, within ninety (90) days of the accrual of the  
claim.

4. The Plaintiff appeared and was questioned by representatives of the  
Defendant City of New York at Hearings pursuant to General Municipal Law section 50-H  
that was held on April 23, 2015.

5. More than ninety days has elapsed since the filing of the Notices of Claim and the Defendant City of New York has not settled or adjudicated this claim.

6. This action is being commenced within one year and ninety days from the dismissal of the criminal charges against Plaintiff.

### **THE PARTIES**

7. Plaintiff JOSEPH RODRIGUEZ was and still is an adult resident of Bronx County, City and State of New York (hereinafter "RODRIGUEZ").

8. The Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized under the laws of the State of New York.

9. The Defendant SERGEANT SOTO, first name currently unknown, assigned to the 6<sup>th</sup> Precinct (hereinafter "SOTO") is an adult resident of the State of New York.

10. At all relevant times hereinafter mentioned, the Defendant SOTO was and is an employee of the Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendant SOTO was acting within the scope of his employment and in the furtherance of his duties with Defendant CITY OF NEW YORK.

12. Defendant SOTO is sued only in his individual capacity.

13. At all times hereinafter mentioned, Defendant SOTO was acting under color of law, to wit: the laws of the State of New York and City of New York.

14. At all times mentioned in this Complaint, the Defendant SOTO acted jointly and in concert with the co-Defendants and other police officers currently unidentified. Defendants had the duty and the opportunity to protect Plaintiff RODRIGUEZ from the

unlawful actions of the other Defendants but each Defendant failed and refused to perform such duty, thereby proximately causing the Plaintiff RODRIGUEZ's injuries.

15. The Defendant SERGEANT PEREZ, first name currently unknown, assigned to the 6<sup>th</sup> Precinct (hereinafter "PEREZ") is an adult resident of the State of New York.

16. At all relevant times hereinafter mentioned, the Defendant PEREZ was and is an employee of the Defendant CITY OF NEW YORK.

17. That at all times hereinafter mentioned, Defendant PEREZ was acting within the scope of his employment and in the furtherance of his duties with Defendant CITY OF NEW YORK.

18. Defendant PEREZ is sued only in his individual capacity.

19. At all times hereinafter mentioned, Defendant PEREZ was acting under color of law, to wit: the laws of the State of New York and City of New York.

20. At all times mentioned in this Complaint, the Defendant PEREZ acted jointly and in concert with the co-Defendants and with other police officers currently unidentified. Defendants had the duty and the opportunity to protect Plaintiff RODRIGUEZ from the unlawful actions of the other Defendants but each Defendant failed and refused to perform such duty, thereby proximately causing the Plaintiff RODRIGUEZ's injuries.

21. The Defendant LIEUTENANT DOE, fictitious name for a person whose name is unknown, assigned to the 6<sup>th</sup> Precinct (hereinafter "DOE") is an adult resident of the State of New York.

22. At all relevant times hereinafter mentioned, the Defendant DOE was and is an employee of the Defendant CITY OF NEW YORK.

23. That at all times hereinafter mentioned, Defendant DOE was acting within the scope of his employment and in the furtherance of his duties with Defendant CITY OF NEW YORK.

24. Defendant DOE is sued only in his individual capacity.

25. At all times hereinafter mentioned, Defendant DOE was acting under color of law, to wit: the laws of the State of New York and City of New York.

26. At all times mentioned in this Complaint, the Defendant DOE acted jointly and in concert with the co-Defendants and other police officers currently unidentified. Defendants had the duty and the opportunity to protect Plaintiff RODRIGUEZ from the unlawful actions of the other Defendants but each Defendant failed and refused to perform such duty, thereby proximately causing the Plaintiff RODRIGUEZ's injuries.

**AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL SEIZURE/  
FALSE ARREST/ AND FALSE IMPRISONMENT**

27. On June 25, 2014, at approximately 5:30 PM, at the NYC Parks property enclosed by 5<sup>th</sup> Avenue, Waverly Place, West 4<sup>th</sup> Street and Macdougall Street in Manhattan, New York, known as Washington Square Park, Defendants SOTO, PEREZ, DOE and other members of the New York City Police Department arrested, detained and seized Plaintiff RODRIGUEZ.

28. Defendants, and other members of the New York City Police Department intended to arrest, detain, and seize the Plaintiff RODRIGUEZ

29. At the time of the arrest, detention and seizure of the Plaintiff on June 25, 2014, there was no warrant of arrest outstanding for the Plaintiff RODRIGUEZ.

30. The arrest, detention and seizure of Plaintiff by Defendants were unlawful.

31. There was no probable cause to arrest, detain, or seize the Plaintiff RODRIGUEZ.

32. There was no legal justification or excuse for the arrest, detention or seizure of the Plaintiff RODRIGUEZ.

33. Defendants knew that there was no probable cause to arrest the Plaintiff RODRIGUEZ.

34. Plaintiff RODRIGUEZ was aware and conscious of his seizure, confinement, detention, and arrest.

35. Plaintiff RODRIGUEZ did not consent to the arrest, detention, or seizure of his person by Defendants.

36. The Defendants committed the above acts under color of state law.

37. As the result of the foregoing, Plaintiff RODRIGUEZ feared for his personal safety, was deprived of his liberty, subjected to scorn, ridicule, and embarrassment, and sustained other consequential damages.

38. Due to the above, the Plaintiff RODRIGUEZ has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT**

39. Plaintiff RODRIGUEZ repeats the preceding paragraphs as if fully set forth.

40. That during the arrest of Plaintiff RODRIGUEZ, the Defendants and other police officers caused Plaintiff to reasonably fear that the Defendants and others were about to cause a harmful and offensive bodily contact with the person of the Plaintiff RODRIGUEZ.

41. That the Defendants and others intentionally acted to placed Plaintiff in fear of this harmful and offensive contact.

42. That the Defendants and others did grab Plaintiff RODRIGUEZ and forcibly searched Plaintiff RODRIGUEZ, did handcuff Plaintiff RODRIGUEZ, and did caused physical contacts to Plaintiff RODRIGUEZ's person.

43. That the acts of the Defendants and others were not justified.

44. That due to the above acts of the Defendants and others the Plaintiff RODRIGUEZ sustained damages.

45. Due to the above, the Plaintiff has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY**

46. Plaintiff RODRIGUEZ repeats the preceding paragraphs as if fully set forth.

47. That during the arrest of Plaintiff RODRIGUEZ, the officers did cause a harmful and offensive bodily contact with the person of Plaintiff RODRIGUEZ.



48. That at the 6<sup>th</sup> Precinct during arrest processing Plaintiff RODRIGUEZ was forced to submit to a strip search by the Defendants.

49. That the Defendants acted intentionally in causing the harmful and offensive physical contact with the Plaintiff RODRIGUEZ.

50. That Plaintiff RODRIGUEZ did not consent to the offensive and harmful contacts.

51. That the acts of the Defendants were not justified.

52. That due to the above acts of the Defendants the Plaintiff RODRIGUEZ sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE  
DEFENDANTS FOR VIOLATION OF CONSTITUTIONAL RIGHTS § 1983.**

53. Plaintiff RODRIGUEZ repeats and reiterates the preceding paragraphs as if fully set forth.

54. That the above actions by the Defendants violated the rights granted to Plaintiff RODRIGUEZ pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. As such Plaintiff RODRIGUEZ seeks relief pursuant to 42 USC § 1983.

55. That due to the above acts of the Defendants Plaintiff RODRIGUEZ sustained damages.

56. Due to the above, Plaintiff RODRIGUEZ has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST THE DEFENDANTS  
FOR VIOLATION OF STATE CONSTITUTIONAL RIGHTS**

57. Plaintiff RODRIGUEZ repeats and reiterates the preceding paragraphs as if fully set forth.

58. That the acts of the Defendants violated the rights granted to Plaintiff RODRIGUEZ pursuant to Article 1 § 12 of the New York State Constitution. As such Plaintiff seeks relief pursuant to *Brown v. State*, 89 NY2d 172 (1996).

59. Due to the above, Plaintiff RODRIGUEZ has sustained damages that exceed the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST CITY OF  
NEW YORK**

60. Plaintiff RODRIGUEZ repeats the preceding paragraphs as if fully set forth.

61. That the City of New York had a formal policy in place regarding the handling of drug arrests by NYPD police officers that was promulgated and adopted.

62. That at the time of the claims herein there was in existence the unlawful practice of arresting persons on less than probable cause by subordinate officials that was so permanent and well settled and pervasive in the New York City Police Department so as to constitute a “custom or usage” which practice is so manifest as to imply the acquiescence of this custom and usage by policy making officials of the Defendant City of New York.

63. That the failure by the Defendant City of New York to properly train and supervise their police officer employees, including these co-Defendants, and the other unidentified police officers involved in Plaintiff RODRIGUEZ’s arrest, search and seizure,

amounts to a deliberate indifference to the rights of those with whom the municipalities employees interact.

64. That Defendants SOTO, PEREZ and DOE and other unidentified police officers violated the constitutional rights of the Plaintiff as set forth above and due to the policies and practices of the Defendant City of New York.

65. Due to the above, the Plaintiff RODRIGUEZ has sustained damages that exceed the Jurisdictional limits of all lower courts.

**AS AND FOR A EIGHTH CAUSE OF ACTION AGAINST CITY OF NEW YORK**

66. Plaintiff RODRIGUEZ repeats the preceding paragraphs as if fully set forth.

67. That the Defendant City of New York is responsible for the acts of their employees, as set forth above.

68. That the acts of the individual Defendants SOTO, PEREZ and DOE violated the rights granted to the Plaintiff RODRIGUEZ pursuant to Article 1, §12 of the New York State Constitution. As such, Plaintiff RODRIGUEZ seeks relief pursuant to *Brown v. State*, 89 N.Y.2d 172 (1996).

69. The unlawful acts of the individual Defendants, as set forth above, were permitted, condoned and ratified by the New York City Police Department and said conduct was part of a systemic custom and practice, and occurred due to the negligence and gross negligence of the City of New York and its agent the New York City Police Department.

70. Due to the above, the Plaintiff RODRIGUEZ has sustained damages that exceed the jurisdictional limits of all lower courts.

**ARTICLE 16 IS INAPPLICABLE TO INSTANT ACTION**

71. The provisions of Article 16 to the CPLR of the State of New York do not apply to the instant action.

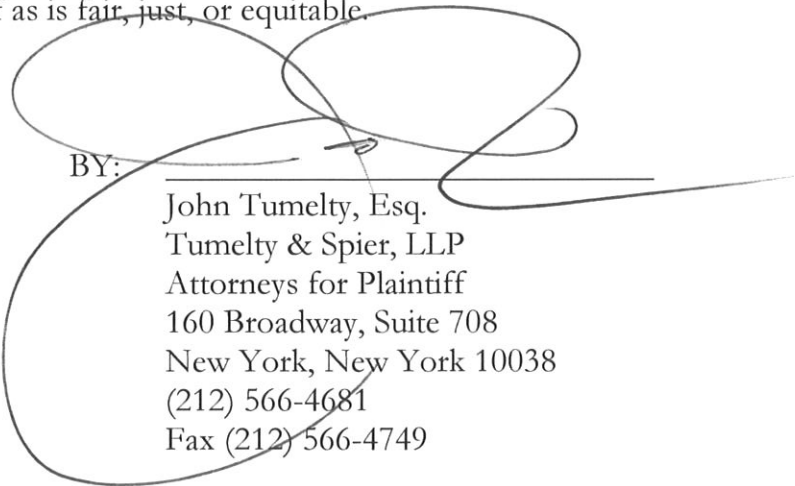
72. The Defendants acted with intent.

73. The Defendants acted knowingly or intentionally, jointly, in concert, and in a conspiracy to "cover-up" the unlawful acts of the Defendants and to otherwise deprive Plaintiff of due process of law, to cause the acts or failures upon which liability is based.

**WHEREFORE**, Plaintiff demands judgment against the Defendants as follows:

- (i) Compensatory damages in an amount that exceeds the jurisdictional limits of all lower courts, and that is just, reasonable, and fair;
- (ii) Punitive damages, against the individual Defendants, in an amount that is just, reasonable, and fair;
- (iii) Attorneys' fees and the costs of this action;
- (iv) Such other relief as is fair, just, or equitable.

Dated: New York, New York  
June 2, 2015

BY: 

John Tumelty, Esq.  
Tumelty & Spier, LLP  
Attorneys for Plaintiff  
160 Broadway, Suite 708  
New York, New York 10038  
(212) 566-4681  
Fax (212) 566-4749

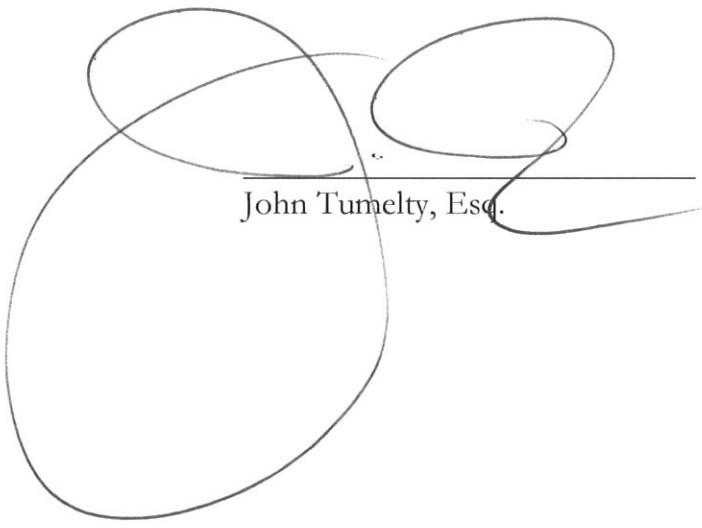
**ATTORNEY'S VERIFICATION**

**JOHN TUMELTY**, Esq., an attorney duly admitted to practice in the Courts of the State of New York, affirms that I am the attorney for the Plaintiff herein; I have read the foregoing Complaint and know the contents thereof, the same is true as alleged on information and belief, and as to those matters, I believe them to be true. The reason this verification is made by me and not by the Plaintiff is because the Plaintiff resides outside of the county in which this affirmant maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are investigation, interviews, filed documents and the contents of the file maintained by this office

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York  
June 2, 2015



John Tumelty, Esq.